

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 3, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINES 1-2</u>	24CV428722	Maribel Duran Carrillo et al vs Universal Protection Service, LP et al	Demurrer (Line # 1) and Motion to Strike (Line #2) Scroll down to Lines 1-2 for Tentative Ruling.
<u>LINE 3</u>	24CV447321	Joanna Loresto vs Ford Motor Company et al	Motion for Summary Judgment/Adjudication Scroll down to Line 3 for Tentative Ruling.
<u>LINE 4</u>	25CV464940	Katie Nguyen vs BMW of North America, LLC et al	Motion to Compel Deposition and Sanctions Scroll down to Line 4 for Tentative Ruling.
<u>LINE 5</u>	25CV483469	Zaki Jones vs Costco Wholesale Corporation et al	Demurrer Scroll down to Line 5 for Tentative Ruling.
<u>LINE 6</u>	26CV483967	Prasun Maharatna vs Flexton Inc. et al	Motion to Compel Scroll down to Line 6 for Tentative Ruling.
<u>LINE 7</u>	26CV493338	Pavel Rodl vs Sanas.AI	Petition to Compel Arbitration Scroll down to Line 7 for Tentative Ruling.
<u>LINES 8-9</u>	22CV397661	Shirley Long et al vs Barbara Kalman et al	Motion to Enforce Settlement Scroll down to Lines 8-9 for Tentative Ruling.

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9:01 A.M.			
<u>LINES 1-4</u>	19CV360733	Edward Kellar et al vs Central Investments et al	Hearing: Order of Examinations Parties to appear.

- 00000 -

9:00 A.M.

Calendar Lines # 1-2

Case Name Maribel Duran Carrillo et al vs Universal Protection Service, LP et al

Case No. 24CV428722

Demurrer (Line # 1) and Motion to Strike (Line #2)

Before the court are two motions filed by Defendants The Irvine Company and Tesoro Crescent Village (collectively “Defendants”): (1) Demurrer (Line # 1); and (2) Motion to Strike (Line # 2) to Plaintiffs’ Third Amended Complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. The Court addresses the Demurrer (Line #1) first and then the Motion to Strike (Line # 2).

DEMURRER (LINE # 1)

I. BACKGROUND

This case stems from a fatal shooting that occurred on June 13, 2026, Decedent Erica Pantoja and Marco Carral-Duran (collectively “Decedents”) were shot and killed by Ms. Pantoja’s estranged ex-spouse, Salvador Pantoja. Decedent Erica Pantoja’s six minor children who are plaintiffs in this matter were present at the time of the incident. Plaintiffs seeks damages against Defendants The Irvine Company and Tesoro Crescent Village, and Universal Protection Service, LP.

On December 8, 2025, Plaintiffs filed a Third Amended Complaint (“TAC”) following a prior court order authorized by the Honorable Shella Deen dated November 14, 2025 sustaining Defendants’ demurrer to Plaintiff’s Second Cause of Action (“SAC”) with twenty days leave to amend. Plaintiff alleges new causes of actions following the three prior demurrers. In its TAC, Plaintiff alleges five causes of actions: (1) Negligence (Wrongful Death and Survivor Action); (2) Negligent Infliction of Emotional Distress (Bystander Theory); (3) Negligent Undertaking; (4) Negligent Misrepresentation and Concealment; and (5) Breach of Workplace Safety Duty.

On January 30, 2026, Defendants filed this demurrer (Line #1) and motion to strike (Line #2). The motions are accompanied by a proof of electronic service on Plaintiffs’ counsel on that same day.

On June 26, 2026, an ex parte application to continue the hearing on the demurrer was denied.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the Defendant notice of demurrer and memorandum of points and authorities (totaling 30 pages); Declaration of James C. Truxaw in support of the demurrer and attached Exhibits A- B (totaling 25 pages); Request for Judicial Notice (totaling 125 pages); proofs of services; and the pleadings.

II. PROCEEDURAL REQUIREMENTS

A. MEET AND CONFER

Code of Civil Procedure section 430.41 requires parties to meet and confer prior to filing the demurrer. On January 30, 2026, Defendants’ counsel attempted to email Plaintiffs’ counsel on January 22, 2026 (Declaration of Truxaw ¶ 5; Exhibit B), and attempted to call Plaintiffs’ counsel and left a voice message on January 23 and 26, 2026. (*Id.*, ¶6). Thus, the court finds Defendants complied with Code of Civil Procedure section 430.41 and now considers the demurrer on its merit.

B. REQUEST FOR JUDICIAL NOTICE

Under Evidence Code section 452(c)-(d), the court may take judicial notice of court records and actions of the state. Here, Defendants request that the court takes judicial notice of six exhibits: (1) Exhibit A, is Plaintiff's original Complaint; (2) Exhibit B is the Honorable Shella Deen's October 11, 2024 Order sustaining Defendant's Demurrer to Plaintiff's Complaint; (3) Exhibit C is Plaintiff's First Amended Complaint; (4) Exhibit D is the Honorable Shella Deen's April 3, 2025 Order sustain Defendant's Demurrer to Plaintiff's First Mended Complaint; (5) Exhibit E, is Plaintiff's Second Amended Complaint; and (6) Exhibit F, is the Honorable Shella Deen's November 14, 2025 Demurrer to Plaintiff's SAC.

The request for judicial notice is unopposed. The Court GRANTS the defendant's request judicial notice to the extent that Exhibits A - F as identified above. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375).

III. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)). "A general demurrer will lie where the complaint 'has included allegations that clearly disclose some defense or bar to recovery.' [Citation.]" (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145, 1152).

When a demurrer is sustained with leave to amend, "[t]he plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend." (*Harris v. Wachovia Mortg., FSB* (2010) 185 Cal.App.4th 1018, 1023; see also *Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015 [plaintiff may add a new cause of action when it "directly responds to the court's reason for sustaining the earlier demurrer"]).

IV. ANALYSIS

Defendants demurrer to Plaintiff's TAC.

On November 6, 2025, the Honorable Shella Deen heard the Defendants demurrer as to Plaintiff's Second Amended Complaint ("SAC") and took the matter under submission. On November 14, 2025, Judge Deen issued an Order noting that the plaintiffs have filed three iterations of the Complaint and failed to successfully allege their claims for negligence. However, the court allowed the plaintiff twenty days' leave to amend to sufficiently state a claim for negligence based on third party acts of crime and noted that this was the plaintiff's final opportunity. (Order, November 14, 2025).

On December 8, 2025, Plaintiffs filed its TAC alleging new causes of actions, including: (1) Negligence (Wrongful Death and Survivor Action); (2) Negligent Infliction of Emotional Distress (Bystander Theory); (3) Negligent Undertaking; (4) Negligent Misrepresentation and Concealment; and (5) Breach of Workplace Safety Duty. A plaintiff is precluded from amending new causes of actions when a demurrer is sustained with leave to amend. (*Harris v. Wachovia Mortg., FSB, supra*, 185 Cal.App.4th 1018).

Defendants argue that the Plaintiff's TAC fails state facts sufficient to constitute a cause of action under Code of Civil Procedure section 430.10(e), because there is no facts to support an actionable duty of care or breach, specifically Defendants' obligation to prevent third-party criminal conduct on their property. (Demurrer, p. 5-8). Defendants also avers that there is insufficient facts to establish causation. (*Id.*). Finally, Defendants state that Plaintiffs are barred under workers' compensation exclusivity and the *Privette* doctrine. (*Id.*).

Here, the Court notes that this is the fourth demurrer filed by the Defendants in this matter. Since Plaintiff filed its original Complaint on January 5, 2024, there have been three demurrers and three amended Complaints filed. From October 2024 to November 2025, the court has sustained the demurrers with leave to amend. Thus, the court has liberally construed leave to amend to allow for the plaintiffs the reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348). After the third demurrer, on November 11, 2025, Judge Deen expressly noted that this was the final leave to amend. Plaintiffs has not shown a reasonable probability of amending the complaint to cure the deficiencies discussed above.

V. CONCLUSION

Based on the foregoing, the demurrer being unopposed, the demurrer to the first and second causes of actions are SUSTAINED WITHOUT LEAVE TO AMEND. The Court will prepare the formal Order.

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MOTION TO STRIKE (LINE # 2)

I. BACKGROUND

This case stems from a fatal shooting that occurred on June 13, 2026, Decedent Erica Pantoja and Marco Carral-Duran (collectively "Decedents") were shot and killed by Ms. Pantoja's estranged ex-spouse, Salvador Pantoja. Decedent Erica Pantoja's six minor children who are plaintiffs in this matter were present at the time of the incident. Plaintiffs allege that Erica Pantoja was working as a security guard at the time of the incident and seeks damages against Defendants The Irvine Company and Tesoro Crescent Village, and Universal Protection Service, LP.

On January 30, 2026, Defendants filed this motion to strike (Line #2) and demurrer (Line # 1). The motions are accompanied by a proof of electronic service on Plaintiffs' counsel on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the Defendant notice of motion to strike and memorandum of points and authorities (totaling 9 pages); Declaration of James C. Truxaw in support of the motion and attached Exhibits A- B (totaling 25 pages); Request for Judicial Notice and attached Exhibit A (totaling 23 pages); proofs of services; and the pleadings.

II. PROCEDURAL REQUIREMENTS

A. MEET AND CONFER

On January 30, 2026, Defendants' counsel attempted to email Plaintiffs' counsel on January 22, 2026 (Declaration

of Truxaw ¶ 5; Exhibit B), and attempted to call Plaintiffs' counsel and left a voice message on January 23 and 26, 2026. (*Id.*, ¶6). Thus, the court finds Defendants complied with the meet and confer requirements.

B. REQUEST FOR JUDICIAL NOTICE

Under Evidence Code section 452(c)-(d), the court may take judicial notice of court records and actions of the state. Here, Defendants request that the court takes judicial notice of Exhibit A, which is the Honorable Shella Deen's November 14, 2025 Order sustain the Defendants' demurrer to Plaintiff's SAC.

The request for judicial notice is unopposed. The Court GRANTS the defendant's request judicial notice to the extent that Exhibit A as identified above. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375).

III. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 436(a), the court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. Under section 436(b), the court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (*Id.*, § 436). The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (*Id.* § 437). "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768). A motion to strike can be used where the complaint or other pleading has not been drawn or filed in conformity with applicable rules or court orders. (Code Civ. Proc., § 436(b)). This provision is for "the striking of a pleading due to improprieties in its form or in the procedures pursuant to which it was filed." (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528).

IV. ANALYSIS

Defendants move to strike the third cause of action, Negligent Undertaking; fourth cause of action, Negligent Misrepresentation and Concealment; and fifth cause of action, Breach of Workplace Safety Duty alleged in Plaintiffs' TAC.

On November 6, 2025, the Honorable Shella Deen heard the Defendants demurrer as to Plaintiff's Second Amended Complaint ("SAC") and took the matter under submission. Plaintiff's SAC filed on April 23, 2025 and alleged two causes of action: (1) negligence (wrongful death and survival action) and (2) negligent infliction of emotional distress (bystander theory). On November 14, 2025, Judge Deen issued an Order noting that the plaintiffs have filed three iterations of the Complaint and failed to successfully allege their claims for negligence. However, the court allowed the plaintiff twenty days' leave to amend to sufficiently state a claim for negligence based on third party acts of crime and noted that this was the plaintiff's final opportunity. (Order, November 14, 2025).

The Order provides a final opportunity to amend the two existing theories alleged in Plaintiff's SAC for (1) negligence (wrongful death and survival action) and (2) negligent infliction of emotional distress (bystander theory). However, on December 8, 2025, Plaintiffs filed its TAC alleging new causes of actions, including: (1) Negligence (Wrongful Death and Survivor Action); (2) Negligent Infliction of Emotional Distress (Bystander Theory); (3) Negligent Undertaking; (4) Negligent Misrepresentation and Concealment; and (5) Breach of Workplace Safety Duty. A plaintiff is precluded from amending new causes of actions when a demurrer is sustained with leave to amend. (*Harris v. Wachovia Mortg., FSB, supra*, 185 Cal.App.4th 1018). The Court finds that the plaintiff is barred from adding new causes of actions.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

V. CONCLUSION

Based on the foregoing, the motion being unopposed, the motion to strike the third cause of action, Negligent Undertaking; fourth cause of action, Negligent Misrepresentation and Concealment; and fifth cause of action, Breach of Workplace Safety Duty alleged in Plaintiffs' TAC is GRANTED.

The Court will prepare the formal Order.

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Calendar Line # 3
Case Name Joanna Loresto vs Ford Motor Company et al
Case No. 24CV447321
Motion for Summary Judgment/Adjudication Before the court is Ford Motor Company’s motion for summary judgment/ adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> In this action, plaintiff Joanna Loresto (“Plaintiff”) alleges, among other things, defendant Ford Motor Company (“Ford”) and others violated the Song-Beverly Consumer Warranty Act (“Act”) with regard to a 2022 Ford Maverick vehicle (“Vehicle”). In particular, Plaintiff alleges the Vehicle suffered various defects, including a transmission defect, engine defect, and electrical defect, among others. (Complaint, ¶12). On September 13, 2024, Plaintiff filed a complaint against defendant Ford and others asserting causes of action for: (1) Violation of subdivision (d) of Civil Code section 1793.2 (2) Violation of subdivision (b) of Civil Code section 1793.2 (3) Violation of subdivision (a)(3) of Civil Code section 1793.2 (4) Breach of the Implied Warranty of Merchantability (5) Negligent Repair [against defendant All Star Ford only] On October 25, 2024, defendant All Star Ford filed a motion to compel arbitration and to stay action. On February 13, 2025, Plaintiff filed a request for dismissal of defendant All Star Ford. On February 11, 2026, defendant Ford filed the motion now before the court, a motion for summary judgment/ adjudication of Plaintiff’s complaint. The Court notes that Defendant Ford has not yet filed an Answer. A defendant “may move for summary judgment even if they have not yet filed an answer.” (Weil & Brown et al., CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2025) ¶10:62). <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, subd. (a)(1): “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., §437c, subd. (a)(1)). “A defendant or cross-defendant has met that party’s burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., §437c, subd. (p)(2)). “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., §437c, subd. (c)). <u>III. ANALYSIS</u> A. FIRST CAUSE OF ACTION As to the first cause of action of Plaintiff’s complaint, defendant Ford acknowledges:

A plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element). (Civ. Code, § 1793.2; *Ibrahim v. Ford Motor Co.* (1989) 214 Cal. App. 3d 878, 886-887 [263 Cal. Rptr. 64]).(*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101).

Specifically with regard to the third element, defendant Ford cites *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 (*Silvio*) where the court explained:

The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle "after a reasonable number of attempts." "Attempts" is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.

Here, defendant Ford proffers evidence that there was only one warranty repair on the Vehicle. (Ford Motor Company's Separate Statement of Undisputed Material Facts in Support of Motion for Summary Judgment/Adjudication ("Ford UMF"), Issue No. 1, Fact No. 4). Defendant Ford acknowledges the Vehicle was presented at three other times for recalls and at three times for routine maintenance, but contend such visits do not count. Defendant Ford relies upon the federal trial court decision in *Noori v. Jaguar Land Rover N. Am., LLC* (C.D. Cal. Mar. 31, 2021, No. 2:19-cv-08624-FLA (JPRx)) 2021 U.S.Dist.LEXIS 65924, at *13-14 (*Noori*) where the court explained:

In *Adams*, 2016 U.S. Dist. LEXIS 188899, 2016 WL 9136170, at *5, the district court granted summary judgment in favor of a defendant car manufacturer, finding repairs conducted pursuant to recall notices were insufficient to support breach of express warranty claims under the Song-Beverly Act, where the plaintiff did not experience or complain about any defects in the vehicle and, as a result of the recall work performed, the plaintiff never experienced any of the problems associated with the recalls. As the *Adams* court explained, "the Song-Beverly Consumer Warrant[y] Act requires a 'reasonable number of attempts' at repair of a specific defect before any liability can arise under the statute. However, ***because Plaintiff experienced no defects in her [vehicle], only potential defects that were the subject of the recall notices (and repaired before any defect manifested), Plaintiff cannot satisfy the nonconformity element.***" *Id.* (emphasis in original). Other federal courts have similarly held that ***an asymptomatic recall cannot satisfy the nonconformity element of a breach of express warranty claim under the Song-Beverly Act.*** See *McGee v. Mercedes-Benz USA, LLC*, Case No. 19-cv-513-MMA (WVG), 2020 U.S. Dist. LEXIS 55949, 2020 WL 1530921, at *4 (S.D. Cal. Mar. 30, 2020) (holding an interim notice letter regarding a recall in Takata airbags could not satisfy the nonconformity element where it was undisputed the alleged defect never manifested in the plaintiff's vehicle).(emphasis added).

Plaintiff does not directly address this authority in her opposition instead attempting to raise a triable issue by proffering evidence that, on or around October 29, 2024, shortly after Plaintiff filed this lawsuit, Plaintiff brought the Vehicle to an authorized repair facility for basic maintenance "as well as additional recall repair efforts under Recall 23S27, which once again reportedly related to the under-hood fire associated with the 2.5L HEV/PHEV engine." (Declaration of Ben Fuchs in Support of Plaintiff's Opposition to Motion for Summary Judgment/Adjudication ("MSJ/MSA") ¶12). Without citation to any relevant legal authority, Plaintiff argues additionally that the presentation requirement "is measured with respect to the entire vehicle and not with respect to any particular nonconformity." (Memorandum of Points and Authorities in Support of Opposition to Defendant's MSJ/MSA, p. 7, lines 21-22).

The court does not find Plaintiff's unsupported argument persuasive. Defendant Ford's authority is more compelling and the court agrees that the asymptomatic recalls (of the same issue or different issues) that Plaintiff focuses upon do not create a triable issue. Defendant Ford is entitled to summary adjudication of Plaintiff's first cause of action.

B. SECOND CAUSE OF ACTION

Civil Code section 1793.2, subdivision (b), states, in relevant part, "the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days." Here, defendant Ford proffers evidence that the subject Vehicle was in service for no more than 11 days, not in violation of the Act. (Ford UMF, Issue No. 1, Fact Nos. 1 – 10).

In opposition, Plaintiff contends it is not enough for a defendant to show that it has attempted, unsuccessfully, to service or repair the Vehicle or that such attempt spanned more than 30 days. According to Plaintiff, defendant Ford must establish the Vehicle was actually or successfully brought into conformity with the warranty within 30 days.

In reviewing the evidence submitted, defendant Ford affirmatively indicates the "repair was covered" and "recall[s] were] completed proactively and in the absence of any corresponding concern." (Ford UMF, Issue No. 1, Fact Nos. 4 – 8). Even if the court accepts Plaintiff's assertion that the Act requires successful repair and conformity with the warranty within 30 days, the court finds defendant Ford has met its initial burden in that regard. In order for Plaintiff to create a triable issue, Plaintiff would have to present some evidence showing otherwise, but Plaintiff has not done so here.

C. THIRD CAUSE OF ACTION

Civil Code section 1793.2, subdivision (a)(3), states, "Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall . . . Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period."

Defendant Ford proffers evidence that the repair records do not indicate Ford failed to make sufficient service literature and replacement parts available to authorized service and repair facilities. (Ford UMF, Issue No. 1, Fact Nos. 11). In opposition, Plaintiff contends the opposite inference arises from the fact that Plaintiff presented the Vehicle several times during the warranty period including twice presenting the Vehicle for the same engine/fire risk issue. In the court's opinion, such an inference does not arise from the fact that Plaintiff presented the Vehicle several times for different issues.

However, such an inference might be drawn where Plaintiff has presented the Vehicle for the same issue on more than one occasion. Plaintiff's evidentiary support for such an inference is a declaration from her counsel who asserts Plaintiff presented the Vehicle for Safety Recall 22S47 on or about September 14, 2022 to address "under hood fire" risk and then again presented the Vehicle on or about October 29, 2024 to again address Safety Recall 23S27, an "under hood fire" risk. (Declaration of Ben Fuchs in Support of Plaintiff's Opposition to MSJ/MSA ¶¶7 and 12). A triable issue of material fact exists with regard to whether defendant Ford "[made] available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period."

D. FOURTH CAUSE OF ACTION

Under the implied merchantability warranty, "every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer's and the retail seller's implied warranty that the goods are merchantable." (Civ. Code § 1792). The warranty "arises by operation of law" and therefore applies despite its omission from a purchase contract. (*Mega RV Corp. v. HWH Corp.* (2014) 225 Cal.App.4th 1318, 1330 [170 Cal. Rptr. 3d 861]; see *American Suzuki Motor Corp. v. Superior Court* (1995) 37 Cal.App.4th 1291, 1295 [44 Cal. Rptr. 2d 526] (*American Suzuki*)). Merchantability,

as pertinent here, means that the goods “[p]ass without objection in the trade under the contract description,” and are “fit for the ordinary purposes for which such goods are used.” (§ 1791.1, subd. (a)). (*Brand v. Hyundai Motor America* (2014) 226 Cal.App.4th 1538, 1545 (*Brand*)).

a ““core test of merchantability is fitness for the ordinary purpose for which such goods are used.”” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1303 [95 Cal. Rptr. 3d 285] (*Mexia*)). “Such fitness is shown if the product ‘is “in safe condition and substantially free of defects”’ [Citation.]” (*Ibid.*; see *American Suzuki, supra*, 37 Cal.App.4th at p. 1296 [implied warranty does not promise to fulfill buyer's expectations, but provides instead for minimum level of quality]). Thus, a new car need not “be perfect in every detail”; rather, its implied merchantability “requires only that a vehicle be reasonably suited for ordinary use.” (*Keegan v. American Honda Motor Co., Inc.* (C.D.Cal. 2012) 838 F.Supp.2d 929, 945).(*Brand, supra*, 226 Cal.App.4th at p. 1546).

Defendant Ford proffers evidence that the Vehicle was presented twice during the one-year implied warranty period: once for routine maintenance on [November] 11, 2022, and once for the application of Recall 22S47 on September 14, 2022. (*See* Ford UMF, Issue No. 1, Fact Nos. 5 and 9).

In opposition, Plaintiff explains: “to show a breach of the implied warranty of merchantability under California Uniform Commercial Code (Cal. U. Com. Code, § 2725, subd. (2)), “the purchaser was required to show that the defect existed at the time the product was sold or delivered.” (*Jones v. Credit Auto Center, Inc.* (2015) 237 Cal.App.4th Supp. 1, 9-10 (*Jones*)). A breach occurs “when the latent defect came to light.” (*Jones, supra*, 237 Cal.App.4th Supp. At p. 10). A plaintiff’s “burden [is] solely to show the vehicle became unfit during the warranty period.” (*Ibid.*).

In the court’s opinion, defendant Ford’s evidence is sufficient to meet its initial burden of showing that no defect existed during the one-year implied warranty period since, under *Noori, supra*, an asymptomatic recall is insufficient to establish a non-conformity and there appears to be no dispute that routine maintenance, similarly, does not establish the existence of a non-conformity.

In opposition, Plaintiff contends an inference of a nonconformity arises from the fact that Plaintiff presented the Vehicle for recalls within the warranty period and shortly (11 days) after expiration of the one-year warranty period. However, as noted above, the court agrees with *Noori* that an asymptomatic recall is insufficient to establish a non-conformity. By extension, the court is of the opinion that an inference of non-conformity/ defect does not arise from a recall unaccompanied by any symptoms. Consequently, Plaintiff has not presented any evidence which would create a triable issue.

IV. CONCLUSION

Based on the foregoing, defendant Ford’s motion for summary judgement is DENIED.

Defendant Ford’s motion for summary adjudication of the third cause of action (violation of subdivision (a)(3) of Civil Code section 1793.2) of Plaintiff’s complaint is DENIED.

Defendant Ford’s motion for summary adjudication of the first (violation of subdivision (d) of Civil Code section 1793.2); second (violation of subdivision (b) of Civil Code section 1793.2) , and fourth causes of action (breach of the Implied Warranty of Merchantability) of Plaintiff’s complaint is GRANTED.

The Court will prepare the formal Order.

Calendar Line # 4
Case Name Katie Nguyen vs BMW of North America, LLC et al
Case No. 25CV464940
Motion to Compel Deposition and Sanctions
<u>I. BACKGROUND</u> This case stems from a breach of warranty claim under the Song Beverly Act, regarding Plaintiff Katie Nguyen (“Nguyen”)’s April 21, 2023 purchase of 2023 BMW 330e vehicle, vehicle identification number: 3MW39FF08P8D29779 (“Subject Vehicle”) that was manufactured and or distributed by Defendant BMW. (Complaint). On May 1, 2025, Plaintiff filed a Complaint alleging six causes of actions: (1) violation of Civil Code section 1793.2(D); (2) violation of Civil Code section 1793.2(B); (3) violation of Civil Code section 1793.2(A)(3); (4) breach of the implied warranty of merchantability under Civil Code sections 1791.1, 1794, and 1795.5; (5) negligent repair; and (6) fraudulent inducement-concealment. (<i>Id.</i>). Defendant BMW filed an Answer on July 10, 2025. Before the Court is Defendant BMW’s motion to compel Plaintiff Nguyen’s deposition and request for sanctions. Defendant filed the instant motion on May 6, 2026, and the motion was accompanied by a proof of service indicating electronic mail service on Plaintiff’s counsel on that same day. On August 21, 2026, Plaintiff filed an opposition brief. Defendant filed a replay brief on August 27, 2026. The Court has carefully reviewed the following: Defendant’s notice of motion, memorandum of points and authorities (“MPA”); Declaration of Samantha K. Sheehan and attached Exhibits A-I in support of the motion to compel and sanctions (totaling 88 pages); Plaintiff’s opposition (totaling 6 pages); Declaration of Pak Ching Dominic Wong and attached Exhibits 1-5 in support of plaintiff’s opposition (totaling 38 pages); Defendant’s Reply brief (totaling 4 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2025.280(a), service of a proper deposition notice obligates a party or “party-affiliated” witness (officer, director, managing agent or employee of party) to attend and testify, as well as produce any document, electronically stored information, or tangible thing for inspection and copying. Section 2025.450(a) in relevant part provides that if, after service of a deposition notice, a party deponent fails to appear, testify, or produce documents or tangible things for inspection without having served a valid objection under Code of Civil Procedure section 2025.410, the deposing party may move for an order compelling attendance, testimony, and production. (Code of Civ. Proc., § 2025.450(a)). The motion must be accompanied by a meet and confer declaration, or, when a party deponent fails to attend the deposition, the motion must also be accompanied by a declaration stating that the moving party has contacted the party deponent to inquire about the nonappearance. (Code of Civ. Proc., § 2025.450(b)(2)). A motion to compel production of documents described in a deposition notice must be accompanied by a showing of good cause. (Code of Civ. Proc., § 2025.450(b)(1).) In other words, the moving party must provide declarations containing specific facts justifying inspection of the documents described in the notice. Courts liberally construe good cause in favor of discovery where facts show the documents are necessary for trial preparation.

The motion to compel must be “made no later than 60 days after the completion of the record of the deposition.” (Code of Civ. Proc., § 2025.480(b)). This time limit also applies to motions based on a deposition subpoena for production of documents or a business records subpoena. The 60-day time limit runs from the date objections are served because the deposition record is then complete. (*Rutledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164, 1192).

III. ANALYSIS

Defendant BMW moves for an order compelling Plaintiff Nguyen to appear for a deposition and request for monetary sanctions in the amount of \$2,825.00 against Plaintiff.

Defendant demonstrates that it has been seeking Plaintiff’s deposition since November 25, 2025 and requesting available dates for deposition. (Declaration of Sheehan ¶ 2; Exhibit A). Plaintiff responded the next day and offered March 3, 2026 as the deposition date, which the defense accepted on December 5 and on December 8, 2025 issued a notice of deposition of the Plaintiff. (*Id.*, at ¶¶ 3-5; Exhibits B-C). On February 26, 2026, plaintiff filed an objection to the notice of the deposition on the grounds it was unilaterally noticed, which the defense denies. (*Id.*, at ¶ 6; Exhibit D). On March 3, 2026, neither Plaintiff nor Plaintiff’s counsel appeared for the scheduled deposition and did not respond to defense counsel’s email regarding the nonappearance. (*Id.*, at ¶¶ 7-8; Exhibits E-F). From March 13-24, 2026, defense counsel reached out to Plaintiff’s counsel to rescheduled Plaintiff’s deposition, but did not receive any responses. (*Id.*, at ¶¶ 9-10; Exhibits F-G). On April 15, 2026, defense issued an amended notice of deposition of Plaintiff for May 7, 2026. (*Id.*, at ¶ 11; Exhibit H). Three days before the deposition, on May 4, Plaintiff objected to the notice indicating untimely service. (*Id.*, at ¶ 12; Exhibit I). Defense argues that plaintiff has misused the discovery process and deprived defense from conducting essential discovery due to Plaintiff’s failure to respond and appear for deposition, which has prejudiced the defense from preparing for trial and evaluating its case. (*Id.*, ¶ 13). Defense emphasizes that it has made numerous good faith efforts to obtain a mutually agreeable deposition date and that Plaintiff counsel’ has refused to provide viable dates and failed to produce the plaintiff. (MPA, p. 4-5).

In opposition, Plaintiff’s counsel asserts that Plaintiff Nguyen is not avoiding or refusing deposition, but simply requesting reasonable notice and seeks a date that works for both sides with an interpreter for Plaintiff. (Opposition p. 2-3). Plaintiff’s counsel asserts that the March 3, 2026 date was unilaterally selected and that plaintiff and counsel were unavailable. (Declaration of Wong ¶¶ 3-4; Exhibits 1-3). Plaintiff’s counsel admits a delay in responding and seeking extensions to respond to written discovery. (*Id.*, ¶ 5). Plaintiff’s counsel explains that there were significant administrative changes to the law firm that contributed to this delay. (*Id.*, ¶¶ 8-10).

In its reply brief, defense emphasizes that it has worked diligently for over nine months to secure Plaintiff’s deposition and that Plaintiff’s counsel has cancelled mutually agreed upon dates and failed to meet and confer in good faith, which has resulted in delay and prejudice. (Reply, p. 2).

The Court does not find Plaintiff’s reasoning persuasive. For over nine months Defendant has demonstrated its efforts to meet and confer about the deposition of the plaintiff. The Court will GRANT the motion to compel Plaintiff’s deposition.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2023.010, subdivision (d), “[m]isuses of the discovery process” to include “[f]ailing to respond to or to submit to an authorized method of discovery.” Where a party or attorney has engaged in misuse of the discovery process, the court may impose a monetary sanction in the amount of “the

reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc., § 2023.020, subd. (a)).

Defendant's counsel seeks a total of \$2,825.00 in sanctions for pursuing this motion. (Declaration of Sheehan, ¶13). Defense counsel attests to having spent approximately one to two hours relating to issuing notices, dealing with untimely objections, and attempting to meet and confer regarding Plaintiff's deposition. (*Id.*, 14). Defense counsel attests that three hours were spent preparing and filing this motion. (*Id.*, 15). Defense counsel anticipates spending two hours to review the opposition brief and prepare a reply, and anticipates spending another two hours to prepare and appear to the hearing. (*Id.*). Defense claims spending seven hours on the motion and another four hours on dealing with issues regarding Plaintiff's deposition for a total of \$2,765.00. (*Id.*, 16). Defense counsel seeks \$60.00 for costs on filing this motion. (*Id.*).

Plaintiff opposes the imposition of sanctions on the grounds that it did misuse the discovery process or disobey a court order, and explains that the failure to move forward with Plaintiff's deposition was due to not having reasonable notice, failure to agreed upon a mutual date, and changes at plaintiff's counsels law firms that resulted in delays. In the alternative, Plaintiff seeks a significant reduction in sanctions.

The Court GRANTS sanctions, but DENIES the request amount of \$2,825.00. Plaintiff's counsel does not provide an hourly rate in moving papers or the Declaration of Sheehan, but based on the hours and amount requested, the Court calculates the request hourly rate at approximately \$251.36. This is a straightforward motion and the Court will GRANT three hours of time in preparing and filing the present motion and reply at the hourly rate of \$251.36 as well as the \$60.00 in costs for filing fees. The Court denies the request for two hours of anticipated time to appear for a hearing as that is prospective. Thus, the total amount of sanctions against Plaintiff and Plaintiff's counsel is \$814.08.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel. Plaintiff is to make herself available for deposition within sixty (60) days from this hearing.

The Court GRANTS sanctions in the amount of \$814.08 against Plaintiff and Plaintiff's counsel, which is to be paid withing thirty (30) days from this hearing.

The Court will prepare the formal Order.

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Calendar Line # 5
Case Name Zaki Jones vs Costco Wholesale Corporation et al
Case No. 25CV483469
Demurrer Before the court is defendant Costco Wholesale Corporation’s demurrer to plaintiff’s complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. <u>BACKGROUND</u> On February 15, 2024, plaintiff Zaki A. Jones (“Plaintiff”) was a customer at defendant Costco Wholesale Corporation’s (“Costco”) warehouse location in Sunnyvale, a business establishment open to the public. (Complaint, page 2). Plaintiff elected to use the self-checkout area which was open and available for customer use. (<i>Id.</i>) Defendant Maria Doe (“Doe”), an employee of defendant Costco, repeatedly approached Plaintiff, directed Plaintiff to use a cashier line instead of self-checkout, and questioned Plaintiff whether items in his cart had been scanned. (<i>Id.</i>) Defendant Doe persisted in monitoring, hovering near, and repeatedly questioning Plaintiff while Plaintiff was checking out, despite Plaintiff’s clear indication that he wished to complete his transaction without further interference. (<i>Id.</i>). Other customers in the self-checkout area were not subjected to the same level of scrutiny, monitoring, questioning, or direction to leave self-checkout. (<i>Id.</i>). Plaintiff perceived defendant Doe’s conduct as racial profiling, as Plaintiff was singled out for heightened scrutiny and interference under circumstances in which other customers were not. (Complaint, pages 2 – 3). Plaintiff immediately complained to defendant Costco’s in-store management. (Complaint, page 3). The following day, a manager from defendant Costco contacted Plaintiff, acknowledged the concern, confirmed there was no policy requiring Plaintiff to use a cashier line, and stated the employee’s handling of the situation required further discussion and correction. (<i>Id.</i>). As a direct and proximate result of defendants’ conduct, Plaintiff suffered humiliation, emotional distress, anxiety, and loss of the full and equal enjoyment of defendant Costco’s services and Plaintiff no longer feels comfortable returning to the Sunnyvale location due to fear of repeated discriminatory treatment. (<i>Id.</i>). On December 31, 2025, Plaintiff¹ filed a complaint against defendants Costco and Doe asserting a single cause of action for [violation of the] Unruh Civil Rights Act – Civil Code §51. On March 30, 2026, Defendant Costco Wholesale Corporation (“Costco”) filed this demurrer. The motion is accompanied by a proof of electronic service on Plaintiff on that same day. Plaintiff filed an Opposition on August 27, 2026. Defendant filed a notice of non-opposition on August 27, 2026 seeking that the Court grant the demurrer without leave to amend.

¹ Plaintiff is self-represented. Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. “[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]” (*Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303). “A litigant has a right to act as his own attorney [citation] ‘but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.’” (*Lombardi v. Citizens Nat’l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209).

The Court has carefully reviewed the Defendant notice of demurrer and memorandum of points and authorities (totaling 12 pages); Declaration of Clara Rademacher (totaling 2 pages); James C. Truxaw in support of the demurrer and attached Exhibits A- B (totaling 25 pages); Request for Judicial Notice (totaling 125 pages); proofs of services; and the pleadings.

II. PROCEDURAL MATTERS

A. UNTIMELY OPPOSITION

As a preliminary matter, the court notes that Plaintiff's opposition is untimely filed and served. Code of Civil Procedure section 1005, subdivision (b) states, "All papers opposing a motion ... shall be filed with the court and a copy served on each party at least nine court days ... before the hearing." Based on a hearing date of September 3, 2026, Plaintiff's opposition had to be filed and served no later than August 21, 2026. Plaintiff did not file or serve his opposition until August 27, four *court* days late.

California Rules of Court, rule 3.1300, subdivision (d) states, "No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate." Since the court has discretion to consider a late filed paper, since defendant Costco has not suffered any prejudice from the late filing, and to avoid the expenditure of any further judicial resources, the court will look past this procedural violation and consider the opposition on its merits. However, Plaintiff is hereby admonished for the procedural violation. Any future violation may result in the court's refusal to consider the untimely filed papers.

B. MEET AND CONFER REQUIREMENTS

Code of Civil Procedure section 430.41 requires parties to meet and confer prior to filing the demurrer. On February 20, 2026, Defendant's Plaintiff and left a voice message, and followed up with an email. On February 24, 2026, defense counsel emailed again. Parties met and conferred by telephone on March 13, 2026 regarding the defendant's intent to file this demurrer. (Declaration of Rademacher, ¶¶ 3-5). Thus, the court finds Defendant complied with Code of Civil Procedure section 430.41 and now considers the demurrer on its merit.

III. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)). "A general demurrer will lie where the complaint 'has included allegations that clearly disclose some defense or bar to recovery.' [Citation.]" (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145, 1152).

When a demurrer is sustained with leave to amend, "[t]he plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend." (*Harris v. Wachovia Mortg., FSB* (2010) 185 Cal.App.4th 1018, 1023; see also *Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015 [plaintiff may add a new cause of action when it "directly responds to the court's reason for sustaining the earlier demurrer"]).

The Unruh Civil Rights Act states that "[a]ll persons within the jurisdiction of this state are free and equal and no matter what their... race, color...[or] national origin... are entitled to the full and equal accommodations, advantages,

facilities, privileges or services in all business establishments of every kind whatsoever.” (Civ. Code, §51). A plaintiff may enforce his or her rights under the Unruh Civil Rights Act by bringing an action for damages. (Civ. Code, §52, subd. (a); see also CACI, No. 3060).

“The Unruh Act was enacted to ‘create and preserve a nondiscriminatory environment in California business establishments by “banishing” or “eradicating” arbitrary, invidious discrimination by such establishments.’” (*Flowers v. Prasad* (2015) 238 Cal.App.4th 930, 937). “A plaintiff can recover under the Unruh Civil Rights Act on two alternate theories: (1) a violation of the ADA [citation]; or (2) denial of access to a business establishment based on intentional discrimination.” (*Martin v. Thi E-Commerce, LLC* (2023) 95 Cal.App.5th 521, 527).

IV. ANALYSIS

Defendant Costco demurs, initially, on the ground that to Plaintiff’s has not alleged and cannot establish the first element of his claim, denial of full and equal services. Costco emphasizes that Plaintiff was able to complete his purchase at the Costco Sunnyvale warehouse, despite interactions with Maria Doe. (Complaint ¶ 8). Thus, there is no Unruh Act claim because there is no denial of full and equal accommodations. (Demurrer, p. 9). “In general, a person suffers discrimination under the Act when the person presents himself or herself to a business with an intent to use its services but encounters an exclusionary policy or practice that ***prevents him or her from using those services.***” (*White v. Square, Inc.* (2019) 7 Cal.5th 1019, 1023; emphasis added). “To state a claim under the Unruh Civil Rights Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or ***denies plaintiff full and equal treatment of a service***, advantage, or accommodation based on plaintiff’s protected status.” (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 922; emphasis added). As defendant Costco points out, Plaintiff alleges he “successfully completed his transaction.” (Complaint, page 2, line 28).

In opposition, Plaintiff argues that regardless of whether or not he was able to complete purchase of goods, the issue is whether he was subject to unequal treatment and racial harassment while shopping at Costco. (Opposition, p. 1). Plaintiff persuasively cites *Smith v. BP Lubricants USA Inc.* (2021) 64 Cal.App.5th 138, 153 – 154 where the court explained:

That Smith was “not denied anything” is not dispositive, as BP and Pumarol contend, because the Unruh Civil Rights Act mandates “equal treatment of patrons in *all aspects* of the business.” (*Koire v. Metro Car Wash* (1985) 40 Cal.3d 24, 29 [219 Cal. Rptr. 133, 707 P.2d 195], italics added). ***The Unruh Civil Rights Act does not require that a victim of business establishment's discriminatory, unequal treatment be denied services or demand equal treatment to state a claim under the act.*** (See *Angelucci v. Century Supper Club, supra*, 41 Cal.4th at p. 168).

...

a business establishment's unequal, race-based treatment of its customers is unlawful under the Unruh Civil Rights Act—***even if its customers are not denied services.*** This is true whether the discriminatory treatment is verbal, physical, or financial. Thus, in the context of alleged racial discrimination, the dispositive question under the Unruh Civil Rights Act is whether the plaintiff faced unequal treatment on account of his or her race that members of other races did not experience.

(Italics original. emphasis added).

Defendant Costco argues next that Plaintiff presents no facts to show that race was a substantial motivating reason why the Maria Doe inquired about items or directed him to the cashier line. Defendant emphasizes that there is no facts presented regarding intentional discrimination. (*Id.*, p. 9; See CACI, No. 3060). Plaintiff’s complaint states, in conclusory fashion, “Defendants’ conduct denied Plaintiff the full and equal enjoyment of Costco’s services on the basis of race.” Defendant Costco contends Plaintiff’s complaint lacks any facts from which such intentional

discrimination may be inferred. Even if Plaintiffs claim that similarly situated customers at the self-checkout line were not subject to Maria Doe’s inquiry, Plaintiff fails to allege that Costco’s monitoring of the self-checkout line is race based. (*Id.*, p. 10). Defense emphasizes that “the Unruh Act requires allegations supporting willful, affirmative misconduct with the specific intent to accomplish discrimination on the basis of [a protected trait].” *Martinez v. Cot’n Wash, Inc.*, 81 Cal. App. 5th 1026, 1036 (2022) (internal citations and quotations omitted) (citing *Koebke v. Bernardo Heights Country Club*, 36 Cal. 4th 824, 854–54, 31 (2005)). (Demurrer, p. 11). Thus, defense avers that there is no showing of any willful, affirmative conduct.

In opposition, Plaintiff acknowledges his complaint lacks such factual detail and requests leave to amend to allege more specific facts. Plaintiff proffers that other customers using nearby self-checkout were not subject to the alleged scrutiny, monitoring, questioning, or harassment. (Opposition, p. 3). Plaintiff also asserts that he suffered humiliation, emotional distress, and anxiety due to Maria Doe’s treatment and no longer feels comfortable returning to Costco’s Sunnyvale warehouse. (*Id.*, at p. 4). Thus, Plaintiff asserts that there is an inference of intentional and affirmative discriminatory conduct. (*Id.*).

Pursuant to Civil Code sections 51 and 52, the Unruh Act protects individuals from arbitrary and intentional discrimination by California business establishments. (Civ. Code, §§ 51, 52). “The Unruh Act, codified at [Civil Code] section 51, was ‘enacted to prohibit discriminatory conduct by individual proprietors and private entities offering goods and services to the general public.’ [Citations.]” (*Thurston v. Omni Hotels Management Corporation* (2021) 69 Cal.App.5th 299, 30). “California’s Unruh Act creates a cause of action for any person who is denied the right to ‘full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever’ based on that person’s ‘sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status.’ (Civ. Code, §§ 51, subd. (b), 52).” (*Mackey v. Board of Trustees of California State University* (2019) 31 Cal.App.5th 640, 660). “The Act is to be given a liberal construction with a view to effectuating its purposes.” (*Koire v. Metro Car Wash* (1985) 40 Cal.3d 24, 28). Thus, the Unruh Act prohibits intentional discrimination “made by a ‘business establishment’ in the course of furnishing goods, services or facilities to its clients, patrons or customers.” (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 500). “[T]he Unruh Civil Rights Act ‘can be violated in a number of ways by words alone.’” (*Smith v. BP Lubricants USA Inc.* (2021) 64 Cal.App.5th 138, 150). “It can also be violated by a business establishment’s unequal treatment of its patrons on impermissible grounds.” (*Id.* at pp.150-151).

Here, Plaintiff alleges that he was harassed and redirected from a self-checkout kiosk at Costco Sunnyvale’s warehouse by Maria Doe. Plaintiff asserts that he was targeted based on his race and observed people of white and Asian decent were not redirected from the self-checkout kiosk. The Court finds the Complaint does not provide any evidence that Plaintiff was denied full and equal access to complete purchase of goods while shopping at Costco Sunnyvale’s warehouse. The Complaint lacks sufficient facts to show how the elements of Unruh is established.

Defense also requests that the court sustains the demurrer and denies any leave to amend asserting that it would be futile. (Demurrer, p. 11-12). Plaintiff seeks to have the demurrer overruled and in the alternative seeks leave to amend.

Courts generally allow at least one opportunity to amend a complaint, after sustaining a demurrer. (*City of Stockton v. Sup.Ct.* (2007) 42 Cal.4th 730, 747; Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2023) ¶7:129). Leave to amend is liberally construed to allow for the plaintiffs the reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348). Therefore, the Court exercises its discretion to grant leave to amend so that Plaintiff has an opportunity to allege facts sufficient to state a claim.

V. CONCLUSION

Based on the foregoing, Defendant Costco's demurrer to Plaintiff's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for violation of the Unruh Civil Rights Act is SUSTAINED with twenty (20) days' leave to amend from the date of this hearing.

The Court will prepare the formal Order.

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Calendar Line # 6
Case Name Prasun Maharatna vs Flexton Inc. et al
Case No. 26CV483967
Motion to Compel <u>I. BACKGROUND</u> This case stems from a wrongful termination claim, on August 8, 2026, Plaintiff Prasun Maharatna (“Maharatna”) filed a Complaint alleging thirteen causes of actions against his former employer, Defendant Flexton Inc. and Rajdeep Jaiswal (collectively “Defendants”), including: (1) violation Government Code section 12900 et seq., disability discrimination; (2) failure to prevent, investigate, and remedy discrimination under Government Code section 12900; (3) retaliation in violation of Government Code section 12900; (4) retaliation in violation of Labor Code section 1102.5; (5) constructive wrongful termination in violation of public policy (count I); (6) constructive wrongful termination in violation of public policy (count II); (7) failure to timely pay earned wages under Labor Code sections 204 and 210; (8) waiting time penalties in violation of Labor Code sections 201 and 203; (9) failure to reimburse business expenses in violation of Labor Code section 2802; (10) breach of contract; (11) breach if implied covenant of good faith and fair dealing; (12) intentional infliction of emotional distress; and (13) negligence. Defendants filed an Answer on February 27, 2026. Before the Court is Plaintiff’s motion to compel responses to request for production of documents, set one, and sanctions. The motion was accompanied by a proof of service indicating electronic mail service to Defendants’ counsel on that same day. The motion to compel is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: notice of motion and memorandum of points and authorities (“MPA”) in support of the motion to compel (totaling 9 pages); Declaration of Alex Purcell in support of the motion and attached Exhibits A-C (totaling 41 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2031.260, a party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd.(a)). If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling response to the demand. (<i>Id.</i>, § 2031.300, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (<i>See Id.</i>, § 2031.300; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2031.300, subd. (a)). “In addition to the demands for inspection, copying, testing, or sampling permitted by this chapter, a party may propound a supplemental demand to inspect, copy, test, or sample any later acquired or discovered documents, tangible things, land or other property, or electronically stored information in the possession, custody, or control of the party on whom the demand is made.” (Code Civ. Proc., § 2031.050, subd. (a)).

III. ANALYSIS

Plaintiff served initial discovery, including request for production of documents (“RFPD”), set one on Defendants on March 11, 2026. (Declaration of Purcell ¶ 2; Exhibit A-B). On April 3, 2026, Plaintiff agreed to Defendants request for an extension to respond to RFPD by May 14, 2026. (*Id.*, ¶ 3). However, no response to RFPD was provided by the May 14 deadline. (*Id.*, ¶ 6). On May 19, 2026, Plaintiff sent a correspondence to defense notifying them of the late responses, waiver of objections to the RFPD, and requested responses by May 29, 2026. (*Id.*, ¶ 5; Exhibit C). At the time of filing the present motion, the Plaintiff has not received any response from Defendants. (*Id.*, ¶ 6).

Over four months have lapsed since responses to RFPD, set one was served and no verified responses were produced. Plaintiff has demonstrated that RFPD were served and no responses were provided.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court GRANTS the motion to compel verifications to the RFPD, set one.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, “the court *shall* impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c)(emphasis added)).

Plaintiff’s counsel seeks a total of \$3,305 in sanctions for pursuing this motion. Plaintiff’s counsel seeks three hours of work expended on researching and preparing this motion; three hours of anticipated time for reviewing any opposition and drafting a reply brief; and one hour of anticipated time to appear for the hearing at the hourly rate of \$425.00. Plaintiff’s counsel seeks \$60.00 in costs for filing this motion.

The Court notes that no opposition papers were filed, thus no time is required for review of an opposition or prepare a reply brief. Further, an appearance on an unopposed motions prospective. The Court also notes that this is a straightforward motion. The Court GRANTS two hours of time expended on the motion at the requested hourly rate of \$475.00 as well as the \$60.00 in costs for filing fees. Thus, the sanctions is awarded in the total amount of \$910.00.

V. CONCLUSION

Based on the foregoing, the motion being unopposed, the Court GRANTS the motion to compel verified responses to RFPD, set one. The Defendant is to provided verifications to the response to RFPD, set one within twenty (20) days from this hearing. The Court GRANTS sanctions against Defendants in the amount of \$910.00. Defendants are to pay the sanctions amount within twenty (20) days from this hearing.

The Court will prepare the formal Order.

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Calendar Line # 7
Case Name Pavel Rodl vs Sanas.AI
Case No. 26CV493338
Petition to Compel Arbitration I. <u>BACKGROUND</u> Plaintiff Pavel Rodl (“Plaintiff”) was an employee of Defendant Sanas. AI (“Defendant”) from January 6, 2025 until his alleged wrongful termination on December 17, 2025. (Complaint at ¶¶ 9, 26). In January 2025, Plaintiff worked on what became “the Verizon opportunity” valued at over \$4 million. (<i>Id.</i> at ¶ 11). Plaintiff led more than 40 customer meetings and coordinated the account in connection with the Verizon opportunity. (<i>Ibid.</i>). Plaintiff alleges that in August 2025, Defendant’s Chief Sales Officer Anant Singh (“Singh”) “unilaterally inserted himself into pricing negotiations.” (Complaint at ¶ 12). At a November 15, 2025 meeting, Singh told Plaintiff that he would not be receiving any commissions on the Verizon opportunity because Plaintiff had lost the deal and the per-license price was too low. (<i>Id.</i> at ¶ 14). Singh further allegedly stated Plaintiff “did not ‘deserve’ any commissions because he was ‘white’, ‘handsome’, ‘well dressed’, and ‘in good shape.’” (<i>Id.</i> at ¶ 18). Plaintiff complained to Human Resources on December 15, 2025. (Complaint at ¶ 22). Plaintiff alleges that the Vice President of People Saralynn Pizano (Pizano) acknowledged Singh’s behavior as harassment. (<i>Id.</i> at ¶ 24). However, Pizano never conducted any investigation into Plaintiff’s complaints. (<i>Id.</i> at ¶ 25). Two days later, on December 17, 2025, Pizano notified Plaintiff that he was being terminated for “performance reasons.” (<i>Id.</i> at ¶ 26). The Verizon opportunity was reassigned to Singh and closed while Plaintiff was still employed. (<i>Id.</i> at ¶ 27). Plaintiff filed suit on May 6, 2026. Plaintiff alleges twelve causes of action for: (1) failure to pay wages due under Labor Code section 200 et seq; (2) wage complaint retaliation under Labor Code section 98.6; (3) whistleblower retaliation under Labor Code section 1102.5; (4) racial discrimination under the Fair Employment and Housing Act (“FEHA”); (5) unlawful retaliation under FEHA; (6) failure to investigate discrimination under FEHA; (7) wrongful termination; (8) failure to pay wages at term under Labor Code section 203; (9) failure to produce pay records under Labor Code section 226; (10) failure to produce personnel file under Labor Code section 1198.5; (11) failure to reimburse business expenses under Labor Code section 2802; and (12) unfair competition under Business & Professions Code section 17200. Defendant now moves to compel arbitration pursuant to the arbitration provision contained in Plaintiff’s offer letter (“the Agreement”). Having considered the Agreement and the circumstances of its execution, the Court will grant the motion and stay this action. II. <u>LEGAL STANDARD</u> The Federal Arbitration Act (“FAA”) governs the Agreement. The Agreement states, “[t]o the fullest extent permitted by law, you and the Company agree to submit to mandatory binding arbitration, governed by the Federal Arbitration Act (the ‘<i>FAA</i>’).” (Declaration of Saralynn Pizano, Ex. B at SANAS 000002, emphasis in original). In any event, “[e]mployment contracts, except for those covering workers engaged in transportation, are covered by the FAA.” (<i>EEOC v. Waffle House, Inc.</i> (2002) 534 U.S. 279, 289). Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (<i>Chiron Corp. v. Ortho Diagnostic Systems, Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130). To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (<i>Davis v. Nordstrom, Inc.</i> (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also <i>Ingle v. Circuit City Stores, Inc.</i> (9th Cir. 2003) 328 F.3d 1165, 1170).

Alternatively, Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060). The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755).

III. ANALYSIS

As an initial matter, Appendix A concerning the Multistate Arbitration Chart does not apply under these circumstances. Appendix A is not referenced in the offer letter. Unlike Appendix B, Appendix A is unsigned and there is no space for the parties’ signatures. Furthermore, it does not appear that Plaintiff received a multistate offer letter and this case does not concern multistate litigation for Appendix A to apply. Defendant maintains Appendix A was likely sent to Plaintiff in error. (Motion to Compel Arbitration at p. 11, fn. 1). The arbitration provision in the offer letter is, therefore, the only agreement at issue. For the reasons stated below, the Court concludes the parties have entered into a valid agreement to arbitrate.

Defendant has attached a copy of the Arbitration Agreement electronically signed by Plaintiff on December 15, 2024. (Declaration of Pizano, Ex. B). (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [noting that it is a moving party’s burden to produce prima facie evidence of an agreement to arbitrate by attaching the agreement to the motion or setting forth its terms verbatim]). Plaintiff’s electronic signature has the same legal effect as a handwritten signature and is express acceptance of an agreement to arbitrate. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060; *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777). Defendant has set forth the procedures undertaken to authenticate Plaintiff’s signature in the Declaration of Saralynn Pizano. Plaintiff does not dispute that he signed the Agreement. To the extent Plaintiff argues he did not understand the legal significance of the Agreement when he signed it, “[a]n arbitration clause within a contract may be binding on a party even if the party never actually read the clause.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US) LLC* (2012) 55 Cal.4th 223, 226). The general rule is that “one who assents to a contract is bound by its provisions and cannot complaint of unfamiliarity with the language.” (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383).

Additionally, the scope of the Agreement covers Plaintiff’s claims. The Agreement applies to “any and all claims arising out of or related to your employment with the Company and the termination thereof, including but not limited to claims for unpaid wages, wrongful termination, torts, stock or stock options or other ownership interest in the Company, discrimination and/or harassment based upon any federal, state, or local ordinance, statute, regulation or constitutional provision . . .”. (Declaration of Pizano, Ex. B at SANAS 000002-000003, ¶ 11). Plaintiff has sued Defendant for violations of the Labor Code including the failure to pay wages and the failure to produce pay records and personnel file. Plaintiff has further sued Defendant for race discrimination and retaliation in violation of FEHA. Plaintiff’s claims arise out of his employment with Defendant and concern the harassing behavior he was subjected to as well as his separation from employment. Thus, Plaintiff’s claims expressly fall within the scope of the Agreement.

Plaintiff does not truly dispute that he signed the Agreement or that the scope of the Agreement covers his claims. Instead, he challenges the enforceability of the agreement by arguing that it is unconscionable.

A. UNCONSCIONABILITY

Plaintiff maintains the Arbitration Agreement is unenforceable because it is both procedurally and substantively unconscionable. The party challenging a contractual arbitration provision bears the burden of proving that it is both procedurally and substantively unconscionable. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 (*OTO*)). This may be done on a sliding scale, where the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required, and vice versa. (*Id.* at pp. 125-126). Nevertheless, both must be shown. Procedural unconscionability focuses on oppression or surprise to the “weaker” party based on unequal bargaining power, whereas substantive unconscionability focuses on the terms of the agreement and whether they are overly harsh or one-sided. (*OTO, supra*, 8 Cal.5th at pp. 125-129). The Court thus proceeds to consider whether the Agreement is procedurally and substantively unconscionable.

B. PROCEDURAL UNCONSCIONABILITY

The circumstances that the court examines to determine whether there was “oppression” in the signing of an agreement generally include: “(1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party’s review of the proposed contract was aided by an attorney.” (*OTO, supra*, 8 Cal.5th at pp. 126-127 [quoting (*Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal.App.4th 1332, 1348)]).

The offer letter is a nine-page document with a separate carve out provision for arbitration. (Declaration of Pizano, Ex. B at SANAS 000002-000009). The Agreement is found at paragraph 11 of the offer letter and includes in capitalized letters that “THE PARTIES HEREBY WAIVE ANY RIGHTS THEY MAY HAVE TO TRIAL BY JURY IN REGARD TO ARBITRABLE CLAIMS.” (*Id.*, Ex. B at 000003, ¶ 11). The end of the offer letter further includes the following disclaimer before the signature line in bold: **“I further acknowledge that I have received and read, or have had the opportunity to read, the arbitration agreement herein. I understand that this arbitration agreement requires that disputes that involve the matters subject to the agreement be submitted to arbitration pursuant to the arbitration agreement rather than to a judge and jury in court.”** (*Id.*, Ex. B at SANAS 000004). The Agreement, therefore, draws the relevant terms to Plaintiff’s attention by using bold and capitalized font and is not procedurally unconscionable in this regard. (See cf. *Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238, 1250-1251 [noting that procedural unconscionability has been found where the presence of an arbitration provision has not been distinguished through bold letting, larger font, or capitalization]).

The Agreement was nevertheless a contract of adhesion offered on a take-it-or-leave-it basis. However, while Plaintiff was required to sign the Agreement as a condition of employment, “the cases uniformly agree that a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a ‘take it or leave it’ basis.” (*Lagatree v. Luce* (1999) 74 Cal.App.4th 1105, 1127). This type of contract of adhesion in the employment context adds a modest amount of procedural unconscionability and, the amount of procedural unconscionability is increased when the fact of an adhesion contract is combined with other issues. (See *Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 248).

While Appendix A is not the operative agreement at issue, its inclusion in the onboarding documents is confusing to a layperson. Appendix A includes terms that contradict the Agreement.² For example, Appendix A provides the

² Plaintiff argues the following term within the Agreement itself is contradictory: “This agreement to arbitrate does not restrict your right to file administrative claims you may bring before any government agency where, as a

arbitration will be held in Palo Alto, California; whereas, the Agreement provides arbitration shall be held in San Francisco, California. (Declaration of Pizano, Ex. B at SANAS 000003, ¶ 11; SANAS 000005). As Plaintiff notes, Appendix A also references Labor Code section 432.6. (*Id.*, Ex. B at SANAS 000005). Labor Code section 432.6, subdivision (a) provides “A person shall not, as a condition of employment, continued employment or the receipt of any employment-related benefit, require any applicant for employment to waive any right, forum, or procedural for a violation of any provision of the California Fair Employment and Housing Act . . . or this code.” However, the Ninth Circuit Court of Appeals has held that the “FAA preempts AB 51³ as a whole to the extent it applies to arbitration agreements.” (*Chamber of Commerce of the United States v. Bonta* (2023) 62 F.4th 473, 490). Thus, Appendix A includes an irrelevant statutory reference, the inclusion of which only causes further confusion for Plaintiff in determining which arbitration provisions apply. The Court does not seek to enforce Appendix A but merely addresses it to note that its inclusion acts as an element of surprise and adds to the Agreement’s procedural unconscionability.

Lastly, Plaintiff argues the execution of the offer letter containing the Agreement was oppressive. Defendant maintains Plaintiff had ample opportunity to review the Agreement and could spend as much time as needed to review its terms. (Declaration of Pizano, at ¶ 11). However, the offer letter expressly states that the offer was sent on December 12, 2024, and was set to expire on December 16, 2024. (*Id.*, Ex. B at SANAS 000001-000004). Thus, Plaintiff had four days to review and sign the offer letter. On December 14, 2024, Plaintiff’s hiring manager messaged him to check whether he had signed the offer letter yet. (Declaration of Pavel Rodl at ¶ 7, Ex. 2). Plaintiff eventually signed the Agreement on December 15, 2024. (Declaration of Pizano, Ex. A). Plaintiff maintains he had no opportunity to negotiate and wanted to sign quickly to not jeopardize his start date. (Declaration of Rodl, at ¶ 10). However, Plaintiff was a sophisticated Enterprise Account Executive and received the documents electronically rather than in person. The offer letter invited Plaintiff to “call” with any questions, which he did not do. (Declaration of Pizano, Ex. B at SANAS 000004, ¶ 15). Plaintiff, therefore, had an opportunity to negotiate but chose not to do so.⁴ The Court does not find these circumstances oppressive.

While a contract of adhesion may render a low degree of procedural unconscionability, the confusion around Appendix A yields a moderate degree of procedural unconscionability.

C. SUBSTANTIVE UNCONSCIONABILITY

Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create overly harsh or one-sided results. (*Armendariz Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*)). The court assesses whether the agreement reallocates risks in an objectively unreasonable or unexpected matter. (*Jones v. Wells Fargo Bank* 112 Cal.App.4th 1527, 1539). “In assessing substantive unconscionability, the paramount consideration is mutuality.” (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238

matter of law, the parties may not restrict the employee’s ability to file such claims (including, but not limited to, the National Labor Relations Board, the Equal Employment Opportunity Commission and the Department of Labor). However, the parties agree that, to the fullest extent permitted by law, arbitration shall be the exclusive remedy for the subject matter of such administrative claims.” (Declaration of Pizano, Ex. B at SANAS 000003). The Court does not find this term contradictory because claims that have completed the requisite review process must be subsequently brought in arbitration rather than in court.

³ Assembly Bill 51 is codified as Labor Code section 432.6.

⁴ Plaintiff cites *Ali v. Daylight Transport, LLC* (2020) 59 Cal.App.5th 462 for the notion that oppression has been found where an employee has been given between one to four days to sign an arbitration agreement. However, the court’s conclusion there was drawn upon conflicting deposition testimony where the chief financial officer stated he did not know any of the circumstances surrounding the signing of the Agreement. (*Id.* at p. 475). This supported the evidence that the plaintiffs there were pressured to sign the documents without the opportunity to consult an attorney or negotiate the terms of the agreement. (*Ibid.*). The same circumstances are not present here.

Cal.App.4th 227, 241 [internal citation and quotation marks omitted]). Arbitration agreements are substantively unconscionable where they lack a “modicum of bilaterality,” “without at least some reasonable justification for such onesidedness based on ‘business realities.’” (*Armendariz, supra*, 24 Cal.4th at p. 117).

Armendariz instructs that there are “five minimum requirements for the lawful arbitration of such rights pursuant to a mandatory employment arbitration agreement. Such an arbitration agreement is lawful if it ‘(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators’ fees or expenses as a condition of access to the arbitration forum. Thus, an employee who is made to use arbitration as a condition of employment “effectively may vindicate [his or her] statutory cause of action in the arbitral forum.” ’ ” (*Armendariz, supra*, 24 Cal.4th at p. 102).

The Agreement satisfies most of these factors. As Defendant notes, the Agreement adopts and incorporates the JAMS employment arbitration rules (“JAMS Rules”). (Declaration of Pizano, Ex. B at SANAS 000003, ¶ 11). The Agreement provides that arbitration shall be held through JAMS before a single neutral arbitrator. (*Ibid.*) Discovery is permitted under Rule 17 of the JAMS Rules, which provides, “[t]he Parties shall cooperate in good faith in the voluntary and informal exchange of all non-privileged documents and other information (including electronically stored information (‘ESI’)) relevant to the dispute or claim immediately after commencement of the Arbitration.” (Declaration of Richard D. Lambert, Ex. B: Rule 17). The Agreement requires the arbitrator to issue a “written decision that contains the essential findings and conclusions on which the decision is based.” (Declaration of Pizano, Ex. B at SANAS 000003, ¶ 11). The Agreement is silent as to the distribution of costs between the parties. However, Defendant does not seem to object to bearing the costs of arbitration. “Thus, in cases where an employer requires an employee to arbitrate his or her claims including statutory claims, the agreement must be interpreted (in the absence of any express terms to the contrary) to require the employer to pay any usual costs associated with arbitration, such as the arbitrator’s fees.” (*Fittante v. Palm Spring Motors, Inc.* (2003) 105 Cal.App.4th 708, 719). Accordingly, Defendant shall bear the costs associated with arbitration.

Plaintiff, however, argues the Agreement is substantively unconscionable for lack of mutuality. Plaintiff argues he is required to submit his claims to arbitration, but claims such as non-solicitation, non-competition, and misappropriation of trade secret or confidential information are claims more likely to be brought by Defendant and can be brought in court. (Declaration of Pizano, Ex. B at SANAS 000003, ¶ 11). Plaintiff notes that this is manifested in the Agreement itself as well as in the Mutual Non-Disclosure Agreement signed by Plaintiff as part of his onboarding. (Declaration of Rodl, Ex. 1). “[C]ourts repeatedly have found an employer-imposed arbitration agreement to be substantively unconscionable when it requires the employee to arbitrate the claim her she is most likely to bring, but allows the employer to go to court to pursue the claims it is most likely to bring.” (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 248).

However, the injunctive relief carve-out Plaintiff complains of is mutual. The Agreement provide: “[E]ach party may, at its, his or her option, seek injunctive relief in court related to violations of your non-competition and/or non-solicitation obligations in any agreements between you and the Company, if applicable, and/or non-solicitation obligations in any agreements between you and the Company, if applicable, and/or the improper use, disclosure, or misappropriation of a party’s private proprietary, confidential or trade secret information[.]” (Declaration of Pizano, Ex. B at SANAS 000003, ¶ 11). To the extent Plaintiff argues these are claims Defendant is more likely to bring, “a contract can provide a ‘margin of safety’ that provides the party with superior bargaining strength a type of extra protection for which it has a legitimate commercial need without being unconscionable. [Citation.]” (*Armendariz, supra*, 24 Cal.4th at p. 117; *Alberto v. Cambrian Homecare* (2023) 91 Cal.App.5th 482 [“provisions that allow employers to seek a preliminary injunction outside of arbitration for breach of a confidentiality agreement are not, by themselves unconscionable, simply because they primarily benefit employers”])). Courts

have found that the protection of valuable trade secrets and proprietary and confidential information from public disclosure is a legitimate commercial need. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1250). Like the agreement upheld in *Santana v. Studebaker Health Care Center LLC* (2026) 120 Cal.App.5th 1, 22, the Agreement here does not require Plaintiff to concede irreparable harm, does not waive the bond requirement, and does not relieve either party of the burden to prove the elements of an injunction. In the absence of these additional factors and given the legitimate commercial need expressed by Defendant, the Court does not find this provision of the Agreement to be substantively unconscionable for lack of mutuality.

D. SEVERABILITY

“[W]hether to sever is within the trial court’s discretion.” (*Navas v. Fresh Venture Foods, LLC* (2002) 85 Cal.App.5th 626, 636-637).

“ ‘In deciding whether to sever terms rather than to preclude enforcement of the provision altogether, the overarching inquiry is whether the interests of justice would be furthered by severance; the strong preference is to sever unless the agreement is “permeated” by unconscionability.’ [Citation]. [¶] An agreement to arbitrate is considered ‘permeated’ by unconscionability where it contains more than one unconscionable provision. [Citation]. ‘Such multiple defects indicate a systemic effort to impose arbitration on [the nondrafting party] not simply as an alternative to litigation, but as an inferior forum that works to the [drafting party’s] advantage.’ [Citation]. An arbitration agreement is also deemed ‘permeated’ by unconscionability if ‘there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.’ [Citation]. If ‘the court would have to in effect, reform the contract, not through severance or restriction, but by augmenting it with additional terms,’ the court must void the entire agreement.” (*Mango v. The College Network, Inc.* (2016) 1 Cal.App.5th 277, 292).

(*De Leon v. Pinnacle Property Management Services, LLC* (2021) 72 Cal.App.5th 476, 492-493).

The offer letter contains a severability clause: “The provisions of this offer letter are severable, and if any part of it is found to be invalid or unenforceable, including, but not limited to, the arbitration provision above, the other parts shall remain fully valid and enforceable.” (Declaration of Pizano, Ex. B at SANAS 000004, ¶ 14). “[I]f the contract contains a severance clause, the court should take it into account as an expression of the parties’ intent that an agreement curable by removing defective terms should otherwise be enforced.” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 517). The Court has found Appendix A to be the single indicia of unconscionability. The Court may, without doubt, sever Appendix A from the entirety of the Agreement to avoid confusion concerning the Agreement’s applicability. In so doing, the Court would not be augmenting the Agreement by adding new terms. The purpose of the Agreement is for the parties to arbitrate disputes arising out of their employment relationship, while permitting injunctive relief related to certain claims for which Defendant has expressed a legitimate commercial need. The severance of Appendix A will not frustrate this purpose. Accordingly, the Court severs Appendix A from the offer letter, such that paragraph 11 of the offer letter remains the only valid agreement to arbitrate.

For these reasons, the motion to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3).

IV. CONCLUSION

Based on the foregoing, the motion to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The Court will prepare the formal order.

Calendar Lines # 8-9
Case Name Shirley Long et al vs Barbara Kalman et al
Case No. 22CV397661
Motion to Enforce Settlement (Lines # 8 – 9) Before the Court are two separate motions to enforce settlement one filed by the Defendants (on December 17, 2025 (Line #8) and another filed by the Plaintiffs on February 3, 2026 (Line #9). The Court analyzes both cases below. This case stems from a dispute between two advancement commercial property owners about a reciprocal easement agreement. On April 26, 2022, Plaintiffs Shirley Long filed the Complaint alleging the following causes of action and relief, including: equitable easement and quiet title, declaratory relief, injunctive relief, and trespassing. Defendants filed an Answer on July 26, 2022. The parties filed a notice of settlement on July 8, 2025. On December 17, 2025, Defendants filed a motion to enforce the settlement pursuant to Code of Civil Procedure section 664.6. The motion is accompanied by a proof of electronic service on Plaintiffs’ counsel on that same day. Plaintiffs filed timely opposition papers on August 12, 2026. The Defendants filed a reply brief. On February 3, 2026, the Plaintiff filed a motion to enforce the settlement pursuant to Code of Civil Procedure section 664.6. The motion is accompanied by a proof of electronic service on Defendants’ counsel on that same day. Defendants filed timely opposition papers on August 12, 2026. The Plaintiffs filed a reply brief. On August 24, 2026, the Court continued the motions to this date and ordered parties to meet-and-confer about the motions and discuss whether parties can reach a stipulation on terms and narrow the scope. Parties were ordered to file a joint statement updating the court by August 31, 2026. The parties filed a joint statement regarding the motions to enforce settlement and confirmed meeting and conferring about the motions. Defendants project manager provided written clarifications on the “T” curb work, including “(i) staking of the property line prior to initiating construction, pursuant to the survey of record, and after demolition, the three foot parking easement based on the survey, and the placement of the curb as approved by the City of Cupertino; and, (ii) restoration in kind of any landscaping and/or irrigation drainage, and surface or subsurface improvements approved by the City of Cupertino and that are in place at the start of construction (subject to relocation of any plants or vegetation that may impede overhang of vehicles within the three foot parking and landscaping easement), and subject to the Plaintiffs having left adequate space for the required three foot parking and landscaping easements as set-forth in the Easement Agreement.” (Joint statement, p. 3). Based on the foregoing, the parties request a continuance for thirty days so that site plans can be finalized and submitted to the City of Cupertino for approval of the revised permit for the parking lot modification. Upon submission of the plans, Plaintiff and Defendants represent they will withdraw their respective motions, but each side reserves the right to enforce settlement in event of future breach. The Court commends the parties for their diligent efforts to resolve the issues and GRANTS the request to continue both motions to November 17, 2026 at 9:00 a.m. in Department 1. Should parties resolve the issue at hand, as noted in the joint statement, the Court orders that the motions are withdraw in compliance with Local Rule, 8 D.